

Master Services Agreement

MASTER SERVICES AGREEMENT

Effective as of 2026-01-15

Acme Corp, a Delaware corporation ("Provider")
Globex Inc, a New York corporation ("Client")

1 DEFINITIONS

- 1 **"Agreement"** means this Master Services Agreement, together with all Exhibits and Schedules attached hereto or incorporated by reference, as may be amended from time to time in accordance with [Section 4](#).
- 2 **"Confidential Information"** means non-public information disclosed by either party in connection with the [Agreement](#), whether marked confidential or not, subject to the exclusions in [Section 2.2](#).
- 3 **"Services"** means the services described in one or more Statements of Work executed by both parties under this [Agreement](#).

2 CONFIDENTIAL INFORMATION**2.1 Obligations**

- 4 Each party agrees to protect the other party's [Confidential Information](#) using at least the same degree of care it uses to protect its own confidential information, and in no event less than reasonable care.^{[1](#)}

2.2 Exclusions

(a) Publicly available information

- 5 Confidential Information does not include information that was already publicly available at the time of disclosure.

(b) Independently developed information

- 6 Confidential Information does not include information that the receiving party can demonstrate, by written records, was independently developed without reference to the disclosing party's Confidential Information.

(i) Burden of proof

- 7 The receiving party bears the burden of establishing the exclusion under this clause by clear and convincing evidence.²

3 TERM AND TERMINATION**3.1 Term**

- 8 This Agreement commences on the Effective Date and continues until terminated as provided in Section 3.2 or Section 3.3.

3.2 Termination for convenience

- 9 Either party may terminate this Agreement for convenience upon sixty (60) days' prior written notice to the other party.

3.3 Termination for cause

- 10 Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days after receiving written notice describing the breach in reasonable detail.

4 AMENDMENT

- 11 This Agreement may only be amended by a written instrument signed by authorized representatives of both parties. No oral

modification, waiver, or course of dealing shall be effective to amend this Agreement.

5 GOVERNING LAW

12 This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles.

Acme Corp, a Delaware corporation ("Provider")

By:

Name:

Title:

Date:

Globex Inc, a New York corporation ("Client")

By:

Name:

Title:

Date:

-
1. This "at least as protective" formulation is the market standard for mutual NDAs and MSAs alike; see generally ABA Model Confidentiality Agreement commentary. [↩](#)
 2. Some jurisdictions apply a "preponderance of the evidence" standard here instead; confirm against the governing-law clause in [Section 3.3's](#) surrounding Article before relying on "clear and convincing" in a non-Delaware agreement. [↩](#)